Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

RESOLUTION NO. 16, SERIES OF 2025

A RESOLUTION ADOPTING SUMMARY PROCEEDINGS IN APPLICATIONS FOR AUTHORITY TO DEVELOP AND OWN OR OPERATE DEDICATED POINT-TO-POINT LIMITED TRANSMISSION FACILITIES, CAPITAL EXPENDITURE PROJECTS, OVER/UNDER RECOVERIES, CONTRACTS FOR THE SUPPLY OF ELECTRIC ENERGY, ISSUANCE OF CERTIFICATES OF PUBLIC CONVENIENCE AND NECESSITY, AND BUSINESS SEPARATION AND UNBUNDLING PLANS BEFORE THE ENERGY REGULATORY COMMISSION

WHEREAS, Section 2 of Republic Act No. 9136, otherwise known as the *Electric Power Industry Reform Act of 2001* (EPIRA), declares that it is the policy of the State to ensure and accelerate the total electrification of the country and to ensure the quality, reliability, security, and affordability of the supply of electric power;

WHEREAS, to achieve the policy of the State of total electrification in the country and ensure the quality, reliability, security, and affordability of the supply of electric power, there is a need to expedite the processing and evaluation of applications for authority to develop and own or operate dedicated point-to-point limited transmission facilities, approval of capital expenditure projects, confirmation of over/under recoveries, approval of contracts for the supply of electric energy, issuance of Certificates of Public Convenience and Necessity, and approval of business separation and unbundling plans filed before the Energy Regulatory Commission;

WHEREAS, Rule 17 of Resolution No. 01, Series of 2021, otherwise known as the Commission's Revised Rules of Practice and Procedure (RRPP) provides for the rules on summary proceedings that may be conducted for cases pending before the Commission;

WHEREAS, it has been the practice of the Commission to conduct full-blown proceedings for applications on approval of capital expenditure projects, confirmation of over/under recoveries, approval of contracts for the supply of electric energy, issuance of Certificates of Public Convenience and Necessity, and approval of business separation and unbundling plans despite the absence of any intervenors or oppositors;

WHEREAS, on 14 June 2023, during its 1060th Regular Commission Meeting, the Commission has resolved to adopt the Summary Proceedings in accordance with Rule 17 of the RRPP in the filing, processing and evaluation of applications for authority to develop and own or operate dedicated point-to-point limited transmission facilities filed before the Commission in the following instances: (1) Applications without any intervenor, or uncontested applications; and (2) Applications with intervenors, provided all parties have agreed to subject the application to summary proceedings;

WHEREAS, in the interest of expeditious disposition of applications for the approval of capital expenditure projects, confirmation of over/under recoveries, approval of contracts for the supply of electric energy, issuance of Certificates of Public Convenience and Necessity, and approval of business separation and unbundling plans filed before the Commission, consistent with the requirements of justice and whenever applicable, the rules on summary proceedings is hereby adopted in the following instances: (1) Applications without any intervenor, or uncontested applications; and (2) Applications with intervenors, provided all parties have agreed to subject the application to summary proceedings;

NOW, THEREFORE, the Commission, hereby **RESOLVES** to **APPROVE** and **ADOPT** the application of the Rules on Summary Proceedings under Rule 17 of the Commission's Revised Rules of Practice and Procedure to applications for authority to develop and own or operate dedicated point-to-point limited transmission facilities, approval of capital expenditure projects, confirmation of over/under recoveries, approval of contracts for the supply of electric energy, issuance of Certificates of Public Convenience and Necessity, and approval of business separation and unbundling plans.

This Resolution shall take effect immediately following its publication in a newspaper of general circulation or in the Official Gazette.

Let copies of this Resolution be furnished to the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR), as well as published in the Commission's official website and such other online platforms available to the Commission under the circumstances, and all parties concerned.

Pasig City.

FRANCIS SATURNINO C. JUAN
Chairperson and CEO

FLORESINDA G. BALDO-DIGAL
Commissioner

(On Official Leave)
MARKO ROMEO L. FUENTES
Commissioner

AMANTE A. LIBERATO
Commissioner

PARIS G. REAL
Commissioner

LS: EJD/ARG/MCCG

**Deliberated and approved during the 17 September 2025 Commission Meeting.*